

ORIGINAL

(S E R V E D)
(MARCH 18, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

March 18, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

MOTION OF SEA-LAND SERVICE, INC. FOR AN
EXTENSION OF THE TIME GRANTED TO APRIL 15, 1992 TO REPLY
TO COMPLAINANTS' MOTION FOR SUMMARY JUDGMENT
ON JURISDICTIONAL ISSUES IN THE WEST COAST GUAM TRADE
AND
JOINT MOTION OF RESPONDENTS AMERICAN PRESIDENT LINES, LTD.
AND SEA-LAND SERVICE, INC. TO POSTPONE ALL DATES
FOR THEIR RESPONSE TO COMPLAINANTS' DIRECT CASE DENIED

Sea-Land Service, Inc. (Sea-Land) seeks, by motion filed March 9, 1992, an extension until April 17, 1992, for it to reply to complainants' (GovGuam) motion for summary judgment on jurisdictional issues in the West Coast/Guam trade.¹

¹Sea-Land proposes to adhere to the March 18, 1992 deadline for filing a response to complainants' summary judgment motion on jurisdictional issues in the Hawaii/Guam trade.

Sea-Land is currently required to respond today to four motions filed February 26, 1992, which, in the aggregate, it estimates exceed 1000 pages. Since GovGuam relies in part on an affidavit of a former director and officer of Sea-Land's motor carrier subsidiary, Sea-Land Motor Freight, John J. McGonegle, Sea-Land wishes to take his deposition testimony before finalizing its reply.

GovGuam's summary judgment motion consists allegedly largely of factual matter, as opposed to a legal argument. Sea-Land states that it needs more time to take inventory of the facts asserted by GovGuam in order to prepare counter-affidavits on disputed facts. At a conference held March 16, 1992, the parties agreed on an extension to April 15, 1992, for Sea-Land to file its reply to complainants' motion for summary judgment on jurisdictional issues in the West Coast/Guam trade.

With respect to respondents' joint motion to extend the dates within which they are required to respond to complainants' direct case, they contend that they have been materially prejudiced by complainants' delays in complying with discovery requests, and urge that they should not be required to prepare their responses to complainants' case in chief while discovery remains incomplete.

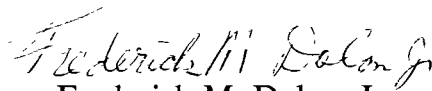
They also believe that so long as complainants' February 26, 1992 dispositive motions remain undecided, respondents will be additionally prejudiced in preparation of testimony because of the uncertainties created by those motions as to the substantive issues that remain in the case.

Sea-Land and APL jointly move that all dates for respondents' filings in response to complainants' direct case (including the date for the filing of respondents' direct cases) be extended by 14 days plus the number of days between March 18, 1992, and the date of either (i) complainants' complete response to discovery requests, if so ordered, pursuant to

Respondents' Motion to Compel Complainants' Response to Outstanding Discovery Requests, also filed March 9, 1992, or (ii) the decision on complainants' February 26, 1992 dispositive motions, whichever is later. (Respondents would not object, if complainants so request, that the date currently scheduled for the submission of complainants' direct case also be extended in the proposed manner.)

The parties were heard on this motion at the March 16th conference. Complainant's advised that their compliance with discovery requests as to financial data from shipper complainants would be furnished within two weeks. The deposition of Mr. McGonegle is now scheduled for early April 1992.

After extensive discussion respondents' motion to extend all dates for their filings in response to complainants' direct case was denied.


Frederick M. Dolan, Jr.
Administrative Law Judge